



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 6, 2021

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 201908292 regarding Police Officer Manish Sharma, Tax No. 949656 (DADS No. 2021-23983)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter in its entirety and determined that the proposed penalty far outweighs the actions of Police Officer Sharma. Police Officer Sharma was assigned to Operation Ceasefire, which instructed officers to liaison with community members at risk of committing continued acts of violence.

Police Officer Sharma did just that when he reached out and offered services to an individual with a history of perpetrating violent crimes in the Bronx. The conversation between Police Officer Sharma and the individual was witnessed by the individual's attorney and Court-appointed counselor, as well as Police Officer Sharma's two partners.

It bears pointing out that the alleged complainant in this case—the individual whose lawyer prompted the lodging of this Civilian Complaint Review Board ("CCRB") complaint—was not interviewed by the CCRB and thus did not testify about his interaction with Police Officer Sharma. Such testimony would have gone a long way in helping the CCRB's own investigator determine what exactly transpired in this case. Instead, the CCRB relied on the testimony given to it by the individual's attorney and the Court-appointed counselor, as well Police Officer Sharma and his partners.

The CCRB's investigator highlighted that the testimony of the individual's attorney and Court-appointed counselor *crucially* differed on what Police Officer Sharma told the individual. The testimony about Police Officer Sharma's statement to the individual was so different that the CCRB investigator could not determine whether that statement constituted a threat to arrest the individual.

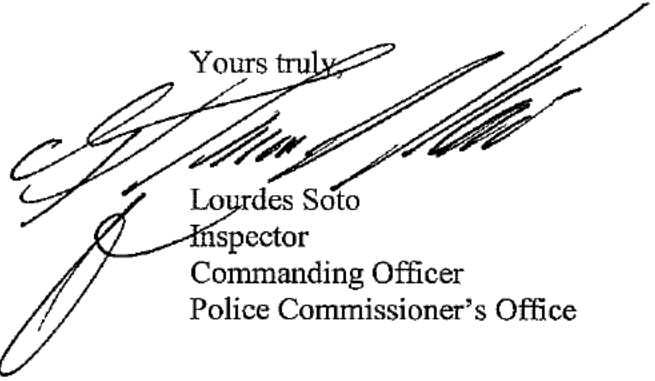
In his testimony to the CCRB, Police Officer Sharma remained steadfast that he did not threaten to arrest the individual. Similarly, Police Officer Sharma's partners testified at their respective CCRB hearings that they did not witness Police Officer Sharma threaten to arrest the individual.

As a result, the CCRB's own investigator unsubstantiated the single allegation of misconduct against Police Officer Sharma. Then, without providing any explanation or rationale, the CCRB's Board overruled its own investigator and substantiated the sole allegation of misconduct against Police Officer Sharma.

Therefore, based on inconsistent witness testimony that calls into question whether any threatening statement was ever made, as well as the CCRB's lack of explanation for overruling its investigator and substantiating the sole allegation of misconduct, Police Officer Sharma will receive no disciplinary action for the alleged violation of Administrative Guide 304-06 (1) (Prohibited Conduct/Threat to Arrest).

If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', is written over the typed name and title.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office